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CCS (Pension) Rules, 2021

Central Civil Services (Pension) Rules, 2021

Detailed Rule-wise Notes — updated with all amendments in force up to June 2026

Incorporating: GSR 770(E) dated 07.10.2022 • CCS (Pension) Amendment Rules, 2024 [GSR 410(E) dated 16.07.2024 — Form 6-A] • CCS (Pension) Amendment Rules, 2025 [Rule 37] • Gratuity ceiling enhanced to ₹25,00,000 w.e.f. 01.01.2024

LDCE — Inspector Posts / PS Group 'B'

DISCLAIMER

This booklet has been prepared strictly from an examination point of view and reflects the position of the CCS (Pension) Rules, 2021 as amended and in force up to June 2026. While every effort has been made to ensure accuracy and to incorporate the latest amendments, notifications and office memoranda, this document is a study aid only. Readers must refer to the official Gazette notifications and DoP&PW orders for the most authoritative and current position.

Primary sources relied upon: *Principal Rules — GSR 868(E) dated 20.12.2021; Amendment — GSR 770(E) dated 07.10.2022 (Rules 8, 20, 46, 50, 76); CCS (Pension) Amendment Rules, 2024 — GSR 410(E) dated 16.07.2024 (Form 6-A; Rules 53, 57, 58, 59, 60); CCS (Pension) Amendment Rules, 2025 (Rule 37); DoP&PW O.M. dated 30.05.2024 (gratuity ceiling ₹25 lakh).*

Chapter I — Preliminary

Rule 1 — Short Title and Commencement

These rules may be called the **CCS (Pension) Rules, 2021**. They came into force on the date of their publication in the Official Gazette, i.e. **20th December, 2021** (vide G.S.R. 868(E) dated 20.12.2021). On commencement, they **replaced the CCS (Pension) Rules, 1972**, which stood repealed; however, anything done or any action taken under the 1972 Rules is deemed to have been done or taken under the corresponding provisions of these rules.

Rule 2 — Application

(1) These rules apply to Government servants appointed to civil services and posts in connection with the affairs of the Union **on or before 31st December, 2003**, including:

- Civilian Government servants in the Defence Services appointed substantively to civil services and posts borne on pensionable establishments.
- A Government servant who was put on **induction training on or before 31.12.2003**, followed by appointment on a regular basis after 31.12.2003 — such a servant is treated as covered by these rules.
- A person on whom **temporary status was conferred on or before 31.12.2003** and who was subsequently appointed in Government service.

(2) Status of appointments after 31.12.2003. Government servants appointed on or after 01.01.2004 are ordinarily governed by the National Pension System (NPS). However:

- **Option exercised under Rule 10 of the CCS (Implementation of NPS) Rules, 2021:** on death in service, or discharge from service on the ground of invalidation, the benefits of **Invalid Pension under Rule 39** and **Family Pension under Rule 50** shall be payable to the Government servant or his family.
- **Option not exercised:** on death or discharge on the ground of invalidation, the benefits under the **NPS** shall be payable.

(3) Non-applicability. These rules do **not** apply to: Railway servants; persons in casual and daily-rated employment; persons paid from contingencies; persons entitled to the benefit of the **Contributory Provident Fund (CPF)**; members of the **All India Services**; persons locally recruited for service in diplomatic, consular or other Indian establishments in foreign countries; and persons employed on **contract**, except where the contract provides otherwise.

Government of India's Orders

1. There is **no distinction between permanent and temporary employees** in the application of the Pension Rules.

2. Coverage under the CCS (Pension) Rules, 2021 (in place of NPS) applies to Central Government employees whose selection for appointment was finalised **before 01.01.2004** but who joined Government service **on or after 01.01.2004** — subject to exercise of the one-time option, on which the case is placed before the appointing authority (DoP&PW O.M. F. No. 57/05/2021-P&PW(B) dated 03.03.2023).

Rule 3 — Definitions

In these rules, unless the context otherwise requires, the following expressions carry the meanings assigned below:

Accounts Officer: An officer, whatever his official designation, who maintains the accounts of a Ministry, Department or Office of the Central Government or a Union territory, and includes an Accountant-General.

Allottee: A Government servant to whom Government accommodation has been allotted on payment of licence fee or otherwise.

Average Emoluments: The average of the emoluments drawn by a Government servant during the last **10 months** of his service (computed under Rule 32).

Bhavishya: An online system for the sanction of retirement benefits and tracking of the sanction and payment of pension by the Government servant and the authorities concerned.

Child: A son or daughter of the Government servant who is eligible to receive death gratuity or family pension.

Dearness Relief: Dearness relief on pension and family pension, sanctioned under Rule 52.

Emoluments: Basic pay of the Government servant as elaborated in Rule 31.

Family Pension: Family pension payable under **Rule 50**.

Foreign Service: Service in which a Government servant receives his pay, with the sanction of Government, from a source other than the Consolidated Fund of India or a Local Fund.

Government: The Central Government.

Gratuity: Includes (i) **Service Gratuity** under Rule 44; (ii) **Retirement/Death Gratuity** under Rule 45(1); and (iii) **Residuary Gratuity** under Rule 45(3).

Head of Department: An authority specified in Schedule I to the Delegation of Financial Powers Rules, 1978, and includes an authority declared as such.

Head of Office: A Gazetted officer declared as such under Rule 14 of the Delegation of Financial Powers Rules, 1978.

Minor: A person who has not completed the age of **18 years**.

Pension: Includes gratuity but does **not** include dearness relief.

Pension Disbursing Authority: Includes a branch of a bank selected (in consultation with the RBI) for payment of pension; a Post Office; a Treasury (including a Sub-Treasury); and an Accounts Officer.

Pension Payment Order (PPO): Includes an **e-Pension Payment Order**.

Qualifying Service: Service rendered while on duty or otherwise, which is taken into account for pensions and gratuities admissible under these rules.

Retirement Benefits: Includes pension or service gratuity, and retirement gratuity where admissible.

Rule 4 — Government Servants Transferred from Services/Posts to which these Rules Do Not Apply

(1) If a Government servant is permanently transferred to a service or post to which these rules apply, **from** a service or post to which they do **not** apply, he becomes subject to these rules.

(2) It is open to him, **within 6 months** of the date of issue of the order of his permanent transfer, to elect to be governed by the pension rules to which he was subject immediately before the date of transfer.

(3) The option, once exercised, is **final** and cannot subsequently be altered.

Chapter II — General Conditions

Rule 5 — Claims to Pension or Family Pension

(1) Any claim to pension or family pension is regulated by the provisions of these rules **in force at the time** when the Government servant retires, is retired, is discharged, is allowed to resign, or dies — as the case may be.

(2) The day on which a Government servant retires, is retired voluntarily, is discharged, or is allowed to resign is treated as his **last working day**. The **date of death** is also treated as a working day for this purpose.

(3) Where a Government servant, immediately before retirement or death, was absent from duty on leave (or otherwise) or was under suspension, the day of retirement or death forms part of such leave of absence or suspension.

Rule 6 — Limitations on Number of Pensions

(1) A Government servant shall **not** earn two pensions in the same service or post at the same time, or by the same continuous service.

(2) Except for persons of the armed forces, no Government servant is entitled to a separate pension or gratuity for the period of his **re-employment**.

Rule 7 — Pension and Family Pension Subject to Future Good Conduct

(1) Future good conduct is an **implied condition** of every grant of pension and its continuance under these rules.

(2) The appointing authority may, by order in writing, **withhold or withdraw** a pension or a part thereof — whether permanently or for a specified period — if the pensioner is **convicted of a serious crime** or is found guilty of **grave misconduct**.

(3) Where a part of the pension is withheld or withdrawn, the amount of pension shall **not be reduced below the minimum pension** of **₹9,000/-** per month.

(4) Where the authority is satisfied that the pensioner is *prima facie* guilty of grave misconduct, it shall, before passing an order, **serve a notice** specifying the misconduct; the pensioner may submit a representation **within 15 days** of receipt (extendable by a further period not exceeding 15 days), and the authority shall take any representation into consideration.

(5) Where the competent authority is the **President**, the **UPSC** shall be consulted before the order is passed.

(6) The expression **"grave misconduct"** includes the communication or disclosure of any secret official code, password, sketch, plan, model, article, note, document or information referred to in **Section 5 of the Official Secrets Act, 1923**, obtained while holding office, so as to prejudicially affect the interests of the general public or the security of the State.

Government of India's Decisions

1. Failure or refusal by a pensioner to pay Government dues is **not** 'misconduct'.

2. Stoppage or reduction of pension for reasons other than misconduct is **not** permissible.

Rule 8 — Power to Withhold or Withdraw Pension

⚠ AMENDED — GSR 770(E) dated 07.10.2022 (CCS (Pension) Amendment Rules, 2022)

Sub-rule (1) was **substituted**: the power is no longer reserved to the President in every case but distributed among **three competent authorities**. References to "President" in sub-rules (2)(c) and (6) were replaced by "authority competent to pass order under sub-rule (1)", and a **new sub-rule (6A)** on appeals was inserted.

(1) Competent authority. The following may, by order in writing, withhold a pension or gratuity (in full or in part), or withdraw a pension (in full or in part), whether permanently or for a specified period, and may order recovery from a pension or gratuity of the whole or part of any pecuniary loss caused to the Government — **if, in any departmental or judicial proceedings, the pensioner is found guilty of grave misconduct or negligence during the period of service** (including service rendered upon re-employment after retirement):

- **(a)** the **President**, in the case of a pensioner who retired from a post for which the President is the appointing authority;
- **(b)** the **Secretary of the Administrative Ministry or Department**, in the case of a pensioner who retired from a post for which an authority subordinate to the President is the appointing authority; and

- **(c)** the **Comptroller and Auditor-General of India**, in the case of a pensioner who retired from the **Indian Audit and Accounts Department**, from a post for which an authority subordinate to the President is the appointing authority.

Proviso 1: The **UPSC** shall be consulted before any final order is passed **by the President** under this sub-rule. **Proviso 2:** Where a part of pension is withheld/withdrawn, it shall not be reduced below the **minimum pension under Rule 44** (₹9,000/- p.m.).

(2) Departmental proceedings.

- **Instituted while in service:** Such proceedings shall continue after retirement or during re-employment. Where instituted by an authority **subordinate to** the competent authority under sub-rule (1), that authority shall submit a **report recording its findings** to the said competent authority.
- **Not instituted while in service:** They shall **not** be instituted without the sanction of the competent authority under sub-rule (1); shall **not** relate to any event that took place **more than 4 years** before institution; and shall be conducted by such authority and in such place as that competent authority may direct.

(3) Provisional pension. For a Government servant who has retired on attaining the age of superannuation and against whom departmental or judicial proceedings are instituted or continued, the Accounts Officer shall authorise a **provisional pension equal to the maximum pension** admissible on the basis of qualifying service up to the date of retirement, from the day following retirement until final orders. **No recovery** is made where the finally sanctioned pension is less than the provisional pension, or where the pension is reduced or withheld.

(4) Recovery of pecuniary loss. Recovery from pension shall not ordinarily be made at a rate exceeding **one-third (1/3rd)** of the pension admissible on the date of retirement.

(5) Withholding of gratuity. No gratuity shall be paid until the conclusion of the proceedings and the issue of final orders. Where proceedings are instituted under **Rule 16 of the CCS (CCA) Rules, 1965** (minor penalty), the gratuity **shall be paid**.

⚠ NEW — Sub-rule (6A) inserted by GSR 770(E) dated 07.10.2022 (Appeal)

(a) No appeal shall lie against any order made by the **President** under this rule.

(b) An appeal against an order under sub-rule (1) passed by an authority **other than the President** shall lie to the **President**, who shall, **in consultation with the UPSC**, pass such orders on the appeal as he deems fit.

Note

Minor-penalty proceedings have no effect on pension. Where the President is the competent authority, final orders under Rule 8 are issued in the name of the President.

Rule 9 — Commercial Employment After Retirement

(1) A pensioner who, immediately before retirement, was a member of **Central Service Group 'A'**, and who wishes to accept any **commercial employment** before the expiry of **one year** from the date of retirement, must obtain the **previous sanction** of the Government.

(2) Definition. "Commercial employment" means employment in any capacity (including as an agent) under a company, co-operative society, firm or individual engaged in trading, commercial, industrial, financial or professional business, and includes the setting up of a practice as an adviser or consultant in matters in respect of which the pensioner has professional qualifications.

(3) Representation. Where the Government grants permission subject to conditions, or refuses permission, the applicant may, **within 30 days** of receipt of the order, make a representation against such condition or refusal.

Rule 10 — Employment After Retirement Under a Government Outside India

(1) A pensioner who, immediately before retirement, was a member of **Central Service Group 'A'**, and who wishes to accept any employment under a **Government outside India**, must obtain the **previous permission** of the Central Government.

(2) Penalty. No pension is payable to a pensioner who accepts such employment **without proper permission**, in respect of any period for which he is so employed.

Chapter III — Qualifying Service (Rules 11–30)

Rule 11 — Commencement of Qualifying Service

(1) The qualifying service of a Government servant commences from the date he takes charge of the post to which he is first appointed — whether substantively, or in an officiating or temporary capacity.

(2) Where officiating or temporary service is **followed without interruption** by substantive appointment in the same or another service or post, such service is treated as qualifying service.

(3) Service rendered **before attaining the age of 18 years** shall **not** count as qualifying service, except in the case of counting of **military service** for civil pension under Rule 20.

Rule 12 — Conditions Subject to which Service Qualifies

(1) The service of a Government servant shall **not** qualify unless his **duties and pay are regulated by the Government** (or under conditions determined by Government).

(2) "Service" for this purpose means service under the Government, paid by that Government from the **Consolidated Fund of India** or a **Local Fund administered by that Government**.

(3) Counting of temporary status. 50% of the service rendered after attaining temporary status counts, along with the regular service.

(4) Service rendered in **Central Government autonomous bodies before their take-over** by the Central Government may count as qualifying service, subject to prescribed conditions.

Rule 13 — Counting of Service rendered under a State Government

(1) Where a Government servant of a **State Government** was initially appointed in a **pensionable establishment** of the State Government **on or before 31.12.2003** and is **permanently transferred** to a service or post to which these rules apply, the **continuous service** rendered under the State Government (officiating, temporary or substantive) is treated as qualifying service.

(2) Where a Government servant of a State Government is appointed, **with proper permission and after acceptance of his resignation**, to a service or post under the Central

Government to which these rules apply, the **whole** of his service under the State Government is treated as qualifying service.

(3) Liability. The liability for pension and gratuity in such cases is borne entirely by the **Central Government**, and no recovery of proportionate pension is made from the State Government.

Rule 14 — Counting of Service rendered in an Autonomous Body

Where a person was initially appointed **on or before 31.12.2003** in an **autonomous body** under the Central or a State Government, and is subsequently appointed (after resignation) to a service or post to which these rules apply, the service rendered under that body qualifies, subject to the following conditions:

- The appointment in the Central Government in an officiating or temporary capacity is **followed without interruption** by substantive appointment;
- The Government servant is **not drawing a separate pension** from the said autonomous body for the service rendered before acceptance of his resignation;
- Service rendered in a **PSU** (including a nationalised bank or financial institution) before appointment in the Central Government does **not** count as qualifying service for the purpose of these rules.

Rule 15 — Counting of Service rendered in Temporary Status by Casual Labourers

Fifty percent (50%) of the service rendered in a '**temporary status**' capacity by a Government servant on whom temporary status was conferred **before 31.12.2003** counts as qualifying service for pension.

Rule 16 — Counting of Service on Probation

Service on probation against a post, **if followed by confirmation** in the same or another post, qualifies as service for the purpose of pension and gratuity.

Rule 17 — Counting of Service as an Apprentice

Service as an **apprentice** shall **not** qualify for pension, **except** in the case of an **SAS apprentice** in the **Indian Audit and Accounts Department** or the **Defence Accounts Department**.

Rule 18 — Counting of Service on Contract

Where a person is initially engaged by the Government on a **contract for a specified period** and is **subsequently appointed, on or before 31.12.2003**, to the same or another post in a **substantive capacity in a pensionable establishment without interruption of duty**, he may count such contract service as qualifying service, subject to the prescribed conditions (which may require refund of any Government contribution to a contributory provident fund, with interest).

Rule 19 — Counting of Pre-Retirement Civil Service of a Re-employed Government Servant

Where a Government servant who had retired on **compensation pension** or **invalid pension** is re-employed and appointed to a substantive post **on or before 31.12.2003** to a service or post to which these rules apply:

(1) If he continues to **draw the pension** and **retains the gratuity** sanctioned from his earlier service, the former service shall **not** count as qualifying service.

(2) If he **refunds** the retirement gratuity, the amount of commutation, and the pension drawn, the previous service shall **count** as qualifying service.

(3) Where he opts to refund, he may refund the whole amount in a **maximum of thirty-six (36) instalments**.

Rule 20 — Counting of Military Service Rendered Before Civil Employment

> **⚠ AMENDED — GSR 770(E) dated 07.10.2022**
>
> In **Explanation-1, clause (ii)**, the words "was not required to be refunded" were **substituted** by "was to be refunded" — clarifying that, for prior military service to count, the relevant gratuity/bonus element is to be refunded.

(1) If a Government servant **continues to draw the military pension** or **retains the gratuity** received on discharge from military service, his former military service shall **not** count as qualifying service.

(2) If he **refunds** the retirement gratuity, the amount of commutation, and the pension drawn, the previous military service shall **count** as qualifying service.

(3) A re-employed military pensioner should exercise the option under Rule 19(1) **within one year** from the date of re-employment.

(4) Pensionary benefits received for the past service must be **refunded with interest**, from the date of their receipt to the date of refund, at the rate applicable to **GPF accumulations** from time to time.

Rule 21 — Counting of Periods Spent on Leave

All leave during service for which **leave salary is payable**, and all **extraordinary leave (EXOL) granted on medical certificate**, count as qualifying service. EXOL granted **otherwise than on medical certificate** may be allowed by the appointing authority to count where it was granted:

- due to the servant's inability to join or re-join duty on account of **civil commotion**; or
- for prosecuting **higher scientific and technical studies**.

> **Explanation**
>
> For EXOL not covered above, a **definite entry** must be made in the service book at the time of grant that the period shall not be treated as qualifying service.
>
> If the entry is not made at the time of grant, it may be made subsequently, but **not later than 6 months before** the date of superannuation. If no such entry is made, the period of EXOL **shall be treated as qualifying service**.

Rule 22 — Counting of Periods Spent on Training

(1) Where a Government servant was required to undergo **departmental training** before regular appointment to a **Group C** post, the period of such training counts as qualifying service **if** he received pay and allowances or a stipend during it.

(2) Where a case is not covered by sub-rule (1), the Government may, by order, decide whether the time spent under training immediately before appointment counts as qualifying service.

(3) Where such training counts, any interruption caused by the training station and the regular-appointment station being different, **not exceeding the permissible joining time**, also counts as qualifying service.

(4) Where the interruption **exceeds joining time** for administrative reasons, the excess is regularised by leave of the kind due or, if none is due, by **EXOL** granted by the Head of Department, and the period regularised by EXOL counts as qualifying service.

Rule 23 — Counting of Periods of Suspension

(1) Time passed under suspension pending inquiry counts as qualifying service where, on conclusion of the inquiry, the Government servant is **fully exonerated** or the suspension is held to be **wholly unjustified**.

(2) In cases not covered by sub-rule (1), the period of suspension shall **not** count as qualifying service **unless** the competent authority so declares.

(3) In **all** cases of suspension, the competent authority shall pass an order specifying whether the period counts as qualifying service, and a **definite entry** is made in the service book.

> **Note**
> Suspension should be held wholly unjustified where the proceedings end with a **minor penalty**.

Rule 24 — Forfeiture of Service on Dismissal or Removal

Dismissal or removal of a Government servant from a service or post entails the **forfeiture of his past service**, and consequently of pension and gratuity (subject to the grant of compassionate allowance under Rule 41).

Rule 25 — Counting of Past Service on Reinstatement

(1) A Government servant who is dismissed, removed or compulsorily retired, but is **reinstated on appeal or review**, is entitled to count his past service as qualifying service.

(2) The period of interruption between the date of dismissal/removal/compulsory retirement and the date of reinstatement, and the period of suspension (if any), shall **not** count as qualifying service **unless** specifically regularised as duty or leave by the authority that passed the order of reinstatement.

Rule 26 — Forfeiture of Service on Resignation

(1) Resignation from a service or post entails **forfeiture of past service**, unless it is allowed to be **withdrawn in the public interest** by the appointing authority.

(2) A resignation shall **not** entail forfeiture of past service if it was submitted to take up, **with proper permission**, another appointment (temporary or permanent) under the Government where service qualifies — this is a **technical resignation**.

(3) A Government servant may apply to **withdraw his resignation within 90 days** from the acceptance of resignation, provided the post vacated (or any comparable post) is available.

(4) Where withdrawal is allowed and the servant resumes duty, the order is deemed to include condonation of the interruption, but the **period of interruption itself shall not count** as qualifying service.

Benefits of Technical Resignation
(a) the **benefit of past service**; and (b) **fixation of pay** (pay protection) in the new post.

Rule 27 — Effect of Interruption in Service

(1) An interruption in the service of a Government servant entails forfeiture of his past service, **except** in the following cases:

- **(a)** authorised leave of absence;
- **(b)** unauthorised absence in continuation of authorised leave of absence, so long as the post of the absentee is **not filled substantively**;
- **(c)** suspension, where it is **immediately followed by reinstatement**;
- **(d)** joining time while on transfer from one post to another.

(2) Notwithstanding sub-rule (1), the appointing authority may, by order, **commute retrospectively** periods of absence without leave as extraordinary leave.

Rule 28 — Condonation of Interruption in Service

(1) In the absence of a specific indication in the service book, an interruption between two spells of civil service is treated as **automatically condoned**, and the pre-interruption service is treated as qualifying service.

(2) This does **not** apply to an interruption caused by **resignation, dismissal or removal**, or by **participation in a strike**.

(3) The **period of interruption itself** shall not count as qualifying service.

(4) The appointing authority may consider condonation of interruption and treat the pre-interruption service as qualifying service.

(5) The appointing authority may decide **not** to condone an interruption only in **exceptional and grave circumstances**.

Rule 29 — Deputation to the United Nations and Other Organizations

A Government servant deputed on **foreign service** to the **UN Secretariat** or other UN bodies and organizations may opt:

(1) to **pay the pension contributions** in respect of his foreign service and count such service as qualifying for pension under these rules; or

(2) not to pay the pension contributions and **not** count such service as qualifying for pension under these rules (in which case he may instead retain the UN pension benefits for that period).

Rule 30 — Verification of Qualifying Service

(1) On a Government servant completing **18 years** of service, **or** on his being left with **5 years** of service before the date of retirement (whichever is earlier), the Head of Office verifies his service in consultation with the Accounts Officer and issues a certificate of qualifying service.

(2) The verification done under this rule is treated as **final** and is not reopened, except where necessitated by a subsequent change in the rules.

(3) By **31st January** of each year, a report is submitted to the Secretary of the Administrative Ministry or Department giving details of the Government servants who were required to be issued a certificate of qualifying service during the previous calendar year.

Chapter IV — Emoluments and Average Emoluments (Rules 31–32)

Rule 31 — Emoluments

(1) "Emoluments" means the **Basic Pay** as defined in **FR 9(21)(a)(i)** which a Government servant was receiving immediately before his retirement or on the date of his death. It also includes **Non-Practising Allowance (NPA)** granted to a medical officer in lieu of private practice.

> **Government of India's Decisions**
>
> **(a) Stagnation increment** is treated as emoluments for the calculation of retirement benefits.
>
> **(b) Notional increment** on 1st July / 1st January for employees who retire on 30th June / 31st December respectively is reckoned **only** for the purpose of calculating the **pension** admissible, and **not** for the calculation of other pensionary benefits such as gratuity.

(2) Where, immediately before retirement or death, the Government servant had been **absent on EXOL** (the period whereof does not count as service) or had been **under suspension**, the emoluments which he drew immediately **before** proceeding on such leave or being placed under suspension form part of his emoluments.

(3) Where the Government servant, immediately before retirement or death, was on leave and **earned an increment** (though not actually drawn), that increment forms part of his emoluments.

(4) Where a Government servant dies during the currency of a penalty that reduces his pay only during the currency of that penalty (on the expiry of which he would have regained the full pay), the **notional pay** on the date of death, ignoring the effect of the penalty, is treated as his emoluments.

(5) Dearness Allowance is treated as "emoluments" for the purpose of calculating **all types of gratuities** (retirement, death and residuary).

Rule 32 — Average Emoluments

(1) Average emoluments are determined with reference to the emoluments drawn by the Government servant during the **last 10 months** of his service.

(2) Treatment of fractional months. Where the ten-month period includes part of a month, the emoluments for the fractional period are computed by multiplying the monthly emoluments by the fraction **(number of days / 30)**, irrespective of the actual number of days in that month. This **30-day rule applies even to February** (whether it has 28 or 29 days).

Period	Year	Months	Days
17-09-2018 to 30-09-2018	0	0	14
01-10-2018 to 30-06-2019	0	9	0
01-07-2019 to 16-07-2019	0	0	16

Illustration

A Government servant retires on **16th July 2019**. The last ten months comprise **nine full months** plus fractions of **14 days** of September 2018 and **16 days** of July 2019. The emoluments for the fractional periods are computed using the factors **14/30** and **16/30** respectively, and added to the nine full months' emoluments; the total is divided by 10 to arrive at the average emoluments.

Chapter V — Classes of Pensions and Conditions Governing their Grant (Rules 33–41)

Rule 33 — Superannuation Pension or Service Gratuity

(1) A **superannuation pension** is granted to a Government servant who is retired on his attaining the age of compulsory retirement (ordinarily 60 years).

(2) Where the qualifying service is **not less than 5 years and not exceeding 10 years**, a **service gratuity** (and not pension) is granted on superannuation.

(3) Retirement is effective on the **afternoon of the last day of the month** in which superannuation falls, where the date of birth is the **second day or later** of a month.

> **Exception — date of birth on the 1st**
> If the Government servant's **date of birth is the 1st day of a month**, he is retired on the **afternoon of the last day of the previous month** (since, under FR 56, he completes the prescribed age on the last day of the previous month). The 'last day of the month' principle applies irrespective of whether that day is a holiday or non-working day.

Rule 34 — Retiring Pension

(1) A **retiring pension** (or retiring service gratuity, as the case may be) is granted, in accordance with Rule 44, to a Government servant who **retires, or is retired, in advance of the age of compulsory retirement** in accordance with Rule 42 and Rule 43 of these rules and **FR 56**.

(2) A Government servant who, on being declared **surplus**, opts for the **Voluntary Retirement Scheme**, is granted a retiring pension subject to the applicable provisions.

Rule 35 — Pension on Absorption in or under a State Government

(1) A Government servant who has been **permitted to be absorbed** in a service or post in or under a **State Government** is **deemed to have retired** from service under the Central Government from the date of such absorption.

(2) He is eligible, on such absorption, to receive pension or service gratuity (as the case may be) and retirement gratuity, on the basis of the **qualifying service and emoluments on the date of absorption**.

Rule 36 — Pension on Absorption in or under a Corporation, Company or Body

(1) A Government servant who has been **permitted to be absorbed** in a service or post in or under a **corporation or company** (wholly or substantially owned/controlled by Government) or a **body** is **deemed to have retired** from service from the date of such absorption.

(2) He is eligible, on such absorption, to receive pension or service gratuity (as the case may be) and retirement gratuity, on the basis of the **qualifying service and emoluments on the date of absorption**.

Rule 37 — Pension on Absorption Consequent upon Conversion of a Government Department into a PSU

⚠ AMENDED — CCS (Pension) Amendment Rules, 2025

Rule 37 was amended in 2025 to provide that, after absorption, the **dismissal or removal of the absorbed employee from the PSU for any subsequent misconduct shall lead to forfeiture of the retirement benefits for the service rendered under the Government also**. Any such dismissal/removal/retrenchment decision of the undertaking is subject to **review by the administratively concerned Ministry**, and the relevant provisions of **Rules 7 and 8 read with Rule 41 and Rule 44(5)** apply analogously, as they apply to a Government servant. **Verify the exact substituted clause and sub-rule number against the bare Gazette notification** before final publication.

(1) On conversion of a department of the Central Government into a **Public Sector Undertaking (PSU)**, all Government servants of that department are transferred **en-masse** to the PSU, on **deemed deputation** on terms of foreign service without any deputation allowance, until they are absorbed.

(2) The PSU frames its own rules and regulations within a period **not exceeding 5 years** from the date of conversion.

(3) All Government servants on deemed deputation are asked, **within 3 months** of notification of the PSU's rules and regulations, to exercise their option either to **revert** to Government or to seek **permanent absorption** in the PSU.

(4) A Government servant who does **not** exercise an option within the prescribed time is **deemed to have opted for permanent absorption** in the PSU.

(5) Employees opting to **revert** are repatriated to Government **within 2 years** of exercising the option and are redeployed through the surplus cell.

(6) The period between the date of option and the date of reversion continues to be on deemed deputation on foreign-service terms without deputation allowance.

(7) Pensionary benefits in respect of such employees are drawn and paid in the manner specified by the administrative Ministry of the PSU.

Rule 38 — Pension on Absorption Consequent upon Conversion of a Government Department into a Central Autonomous Body

The provisions governing absorption on the conversion of a Government department into a **Central Autonomous Body** are the **same as in Rule 37** (deemed deputation, framing of rules within 5 years, the 3-month option window, deemed permanent absorption on failure to opt, 2-year repatriation for those reverting, and payment of pensionary benefits as specified by the administrative Ministry).

Rule 39 — Invalid Pension

(1) Disability covered by the RPwD Act, 2016. Where a Government servant acquires a disability to which **Section 20 of the Rights of Persons with Disabilities Act, 2016 (49 of 2016)** applies, he is **protected against dispensation from service** under that section and produces a disability certificate from the prescribed competent authority.

(2) Where the RPwD Act is not applicable. A Government servant who intends to retire on account of any **bodily or mental infirmity which permanently incapacitates him** for service (and to whom Section 20 does not apply) may apply to the Head of Department for retirement on **invalid pension**, supported by the prescribed medical certificate.

(3) Invalid pension for service less than 10 years. A Government servant who retires on invalidation **even before completing 10 years** of qualifying service is granted invalid pension at the rate of **50% of emoluments or average emoluments**, whichever is more beneficial to him.

Rule 40 — Compulsory Retirement Pension

(1) A Government servant **compulsorily retired** from service as a **penalty** may be granted pension or gratuity, or both, at a rate **not less than two-thirds and not more than the full** superannuation pension or gratuity admissible on the basis of his qualifying service.

(2) The order regarding the **quantum** of pension and gratuity may be issued simultaneously with the order imposing the penalty of compulsory retirement.

(3) A pension or provisional pension granted/awarded under this rule shall **not be less than ₹9,000/-** per mensem.

Rule 41 — Compassionate Allowance

(1) A Government servant who is **dismissed or removed** from service **forfeits** his pension and gratuity.

(2) The authority competent to dismiss or remove him may, **if the case is deserving of special consideration**, sanction a **compassionate allowance not exceeding two-thirds** of the pension or gratuity (or both) which would have been admissible had he retired on superannuation pension.

(3) A compassionate allowance sanctioned under this rule shall **not be less than ₹9,000/-** per mensem.

Chapter VI — Premature Retirement and Voluntary Retirement (Rules 42–43)

Rule 42 — Retirement on Completion of 30 Years' Qualifying Service (by Government)

(1) At any time after a Government servant has completed a qualifying service of **30 years**, he may be **required by the appointing authority to retire in the public interest**, on a retiring pension.

(2) The appointing authority must give either **at least 3 months' notice in writing** before the date on which the servant is required to retire, **or 3 months' pay and allowances in lieu** of such notice.

Rule 43 — Retirement on Completion of 20 Years' Qualifying Service (Voluntary Retirement)

(1) At any time after a Government servant has completed **20 years** of qualifying service, he may, by giving notice of **not less than 3 months** in writing to the appointing authority, **voluntarily retire** from service on a retiring pension.

(2) The notice of voluntary retirement requires **acceptance** by the appointing authority.

(3) Where the appointing authority does **not refuse** permission before the expiry of the notice period, the retirement becomes effective from the **date of expiry** of that period.

(4) The appointing authority may **withhold permission** to a Government servant seeking voluntary retirement in the following circumstances:

- **(a)** if the Government servant is **under suspension**;
- **(b)** if a **charge-sheet** has been issued and disciplinary proceedings are pending; or
- **(c)** if **judicial proceedings** on charges which may amount to **grave misconduct** are pending.

(5) A request for **withdrawal** of the notice of voluntary retirement must be made **not less than 15 days** before the intended date of voluntary retirement.

Chapter VII — Regulation of Amounts of Pension and Gratuity (Rules 44–49)

Rule 44 — Amount of Pension

(1) A Government servant who retires under **Rule 33, 34, 35, 36, 37, 38 or 39** after a qualifying service of **not less than 10 years** is eligible for a pension calculated at **50% of emoluments or average emoluments**, whichever is more beneficial to him — subject to a **minimum of ₹9,000/-** per month and a **maximum of ₹1,25,000/-** per month (being 50% of the highest pay in the Government, i.e. 50% of ₹2,50,000).

(2) A Government servant who retires (on invalidation) **before completing 10 years** of qualifying service is also granted pension, calculated at **50% of emoluments or average emoluments**, whichever is more beneficial.

(3) Service gratuity. Where a Government servant retires before completing **10 years** of qualifying service (and is not granted invalid pension), **service gratuity** is calculated at the rate of **half a month's emoluments** for every completed six-monthly period of qualifying service.

> **Illustration — Service Gratuity**
>
> Qualifying service = **7 years** (i.e. 14 completed six-monthly periods); Emoluments (Basic Pay + DA) = **₹20,000/-**.
>
> Service Gratuity = ½ × 20,000 × 14 = **₹1,40,000/-**.

(4) Additional pension on attaining advanced age. In addition to the pension (or compassionate allowance) admissible, an additional quantum is payable on attaining the age of 80 years and above, as per the table below (Rule 44(6); erstwhile Rule 49(2-A) of the 1972 Rules):

Age of Pensioner	Additional Pension / Compassionate Allowance
From 80 years to less than 85 years	20% of basic pension
From 85 years to less than 90 years	30% of basic pension
From 90 years to less than 95 years	40% of basic pension
From 95 years to less than 100 years	50% of basic pension

Age of Pensioner	Additional Pension / Compassionate Allowance
100 years or more	100% of basic pension

Note — commencement of additional pension

The additional quantum of pension/family pension is admissible from the **first day of the calendar month** in which the date of birth falls. Example: a pensioner born on 20 August 1942 (or on 1 August 1942) becomes eligible for the 20% additional pension w.e.f. **1 August 2022**. It is paid automatically by the pension disbursing authority/bank as soon as it becomes due.

(5) Calculation of half-year (for gratuity). A fraction of a year is reckoned as: **less than 3 months = Nil**; **3 months to less than 9 months = 1** completed six-monthly period; and **9 months to 12 months = 2** completed six-monthly periods.

(6) Rounding of qualifying service. Where a Government servant has rendered qualifying service of **9 years and 9 months** or more, but less than 10 years, his qualifying service is treated as **10 years**, and he is eligible for pension under sub-rule (1).

(7) Rounding of benefits. All retirement benefits are rounded off to the **next higher rupee**.

Rule 45 — Retirement Gratuity and Death Gratuity

(1) Retirement Gratuity. A Government servant who has completed **5 years'** qualifying service and is eligible for service gratuity or pension is, on retirement, granted retirement gratuity equal to **one-fourth (¼)** of his emoluments for each completed six-monthly period of qualifying service, subject to a maximum of **16½ times** the emoluments.

(2) Death Gratuity. Where a Government servant dies while in service, death gratuity is paid to his family at the following rates:

Length of Qualifying Service	Rate of Death Gratuity
Less than 1 year	2 times of emoluments
1 year or more but less than 5 years	6 times of emoluments
5 years or more but less than 11 years	12 times of emoluments

Length of Qualifying Service	Rate of Death Gratuity
11 years or more but less than 20 years	20 times of emoluments
20 years or more	½ month's emoluments for every completed six-monthly period of qualifying service, subject to a maximum of 33 times of emoluments

(3) Residuary Gratuity. Where a Government servant who has become eligible for service gratuity or pension **dies within 5 years** of retirement (including compulsory retirement as a penalty), and the sums actually received by him on account of such gratuity or pension (including any ad-hoc increase) together with the retirement gratuity and the commuted value of pension are **less than 12 times** his emoluments, a **residuary gratuity** equal to the deficiency is granted to his family.

Illustration — Residuary Gratuity

Emoluments = ₹70,000; total sum received (retirement gratuity + commutation + pension drawn) = ₹8,10,000; 12 × emoluments = ₹8,40,000.

Residuary Gratuity = 8,40,000 − 8,10,000 = **₹30,000/-**.

⚠ MAXIMUM GRATUITY CEILING — ENHANCED TO ₹25,00,000

The maximum amount of retirement gratuity or death gratuity is **₹25,00,000 (Twenty-Five Lakh)**, enhanced from ₹20 lakh with effect from **01.01.2024**, consequent upon Dearness Allowance reaching 50% (DoP&PW O.M. No. 38/37/2016-P&PW(A), May 2024). The ceiling rises by 25% whenever DA on the revised pay rises by 50%.

(4) Temporary Government servant. A temporary Government servant with **less than 10 years**' service who retires on superannuation or is discharged is eligible for gratuity in the **same manner as a permanent** Government servant.

(5) Definition of "family" (for Rules 46–49). "Family" in relation to a Government servant means:

- (i) **wife or wives**, including a judicially separated wife, in the case of a male Government servant; (ii) **husband**, including a judicially separated husband, in the case of a female Government servant;

- (iii) **sons** (including step-sons and adopted sons); (iv) **unmarried daughters** and (v) **widowed daughters** (including step- and adopted daughters);
- (vi) **father** and (vii) **mother** (including adoptive parents where personal law permits adoption);
- (viii) **brothers** below 18 years (and brothers, including step-brothers, suffering from a disorder/disability of mind, or who are physically crippled or disabled, without any age limit); (ix) **unmarried and widowed sisters** (including step-sisters); (x) **married daughters**; and (xi) **children of a pre-deceased son**.

Rule 46 — Nomination

> **⚠ AMENDED — GSR 770(E) dated 07.10.2022**
> In **sub-rule (5), clause (a)**, the words "proviso to" were **omitted** (a cross-reference correction).

(1) A Government servant shall, on his **initial confirmation** in a service or post, make a nomination in **Form 3**, conferring on one or more persons the right to receive the retirement/death gratuity payable under Rule 45.

(2) If he has a **family**, the nomination must **not** be in favour of any person other than the members of his family.

(3) If he has **no family**, the nomination may be made in favour of a person, persons, or a body of individuals (whether incorporated or not).

(4) A nomination made by a Government servant who has **no family** becomes **invalid** on his subsequently acquiring a family.

(5) A Government servant may, **at any time, cancel** a nomination by sending a written notice to the Head of Office, and may make a fresh nomination.

(6) A nomination made by an **unmarried** Government servant in favour of a family member does **not** become invalid on his/her marriage, unless he/she cancels the earlier nomination and files a fresh one.

Rule 47 — Persons to Whom Gratuity is Payable

(1) The gratuity payable under Rule 45 is paid to the person(s) on whom the right is conferred by a **nomination** under Rule 46.

(2) If **no nomination** subsists, the gratuity is paid to **all members of the family in equal shares**.

(3) Minor's share. The share of a minor is paid to the **natural guardian**, if any; in the absence of a natural guardian, to a person furnishing a **certificate of guardianship**; or, for an amount **not exceeding 20%** of the minor's share, to a guardian on production of an **Indemnity Bond** (a guardianship certificate being required where the share exceeds 20%).

Rule 48 — Debarring a Person from Receiving Gratuity

Where a person who is eligible to receive gratuity on the death of a Government servant is **charged with the offence of murdering the Government servant** (or with abetting such an offence), his claim to receive his share of the gratuity remains **suspended** until the conclusion of the criminal proceedings instituted against him. If convicted, he is debarred; if acquitted, his share is released.

Rule 49 — Lapse of Retirement and Death Gratuity

(1) Where a Government servant dies while in service or after retirement **without receiving the gratuity** and leaves behind **no family**, and **(a)** has made no nomination, or **(b)** the nomination made does not subsist, the amount of retirement/death gratuity **lapses to the Government**.

(2) Proviso. The amount is, however, payable to the person in whose favour a **Succession Certificate** in respect of the gratuity has been granted by a court of law.

Chapter VIII — Family Pension (Rules 50–51)

Rule 50 — Family Pension

⚠ AMENDED — GSR 770(E) dated 07.10.2022
In **sub-rule (9), clause (h), sub-clause (iii)**: “clause (e)” was substituted by “clause (h)” and, in the proviso, “clause (d)” by “clause (g)” — internal cross-reference corrections within the order-of-priority provisions.

(1) Eligibility. Family pension is admissible where a Government servant dies:

- **(a)** after completion of **one year** of continuous service;
- **(b)** before completion of one year of continuous service, provided he was examined by the appropriate medical authority and **declared fit** for Government service immediately prior to appointment; or
- **(c)** after retirement, while on the date of death in receipt of a **pension or compassionate allowance**.

(2) Rates of family pension:

- **Normal rate: 30% of the last basic pay**, subject to a minimum of **₹9,000/-** and a maximum of **₹75,000/-** per month.
- **Enhanced rate (death in service): 50% of the last pay drawn**, payable for a period of **10 years** (with no upper age limit applicable to this 10-year period).
- **Enhanced rate (death after retirement):** payable for **7 years**, or up to the date on which the deceased retired servant **would have attained the age of 67 years** had he survived, **whichever is less** [Rule 50(2)(a)(iii)]. This applies **uniformly irrespective of the actual age of retirement** — e.g. CHS doctors retiring at 65 (DoP&PW O.M. dated 27.10.2025).
- **Maximum at the enhanced rate: ₹1,25,000/-** per month.

(3) Additional family pension on attaining advanced age (same slabs as the additional pension under Rule 44):

Age of Family Pensioner	Additional Family Pension
From 80 years to less than 85 years	20% of basic family pension
From 85 years to less than 90 years	30% of basic family pension

Age of Family Pensioner	Additional Family Pension
From 90 years to less than 95 years	40% of basic family pension
From 95 years to less than 100 years	50% of basic family pension
100 years or more	100% of basic family pension

(4) Order of priority for grant of family pension among the members of the family:

Order	Beneficiary	Key Conditions
1	Widow / widower (incl. post-retiral spouse; judicially separated spouse)	Up to death or re-marriage, whichever is earlier. A childless widow on re-marriage continues to receive it if her income from all other sources is below the minimum family pension. More than one widow — equal shares. A judicially separated spouse is eligible only after the children cease to be eligible.
2	Children (incl. adopted, step, and children born after retirement)	Son: unmarried, below 25 years, and not earning his livelihood. Unmarried daughter: beyond 25 years until marriage or until earning a livelihood. Widowed / divorced daughter: for life or until re-marriage / earning a livelihood. The elder eligible child is paid first.
3	Disabled children (mental / physical disability)	Payable for life (even after age 25) if not earning a livelihood, where the disability existed before / continued from before the relevant time.
4	Dependent parents	Payable to the mother first, failing which to the father (both must be dependent on the deceased).
5	Dependent disabled siblings	Eligible for life if the disability existed before the death of the Government servant and overall income is below the entitled family pension.

Women-empowerment amendment — precedence of children over husband

A **female** Government servant or pensioner may, by written request, have the family pension granted to her **eligible child/children in precedence to her husband**, where she is survived by both. After all such children cease to be eligible, the family pension becomes payable to the widower until his death or re-marriage, whichever is earlier (sub-rules (8)–(9) of Rule 50).

New compliance — both parents' life certificates (Oct 2025)

Where enhanced family pension is payable to **dependent parents** (the employee having died unmarried, or as a widow/widower without eligible children), **both parents must submit individual annual life certificates**; the enhanced rate continues only while both are alive, and on the death of one parent the pension is regulated at the applicable lower rate (DoP&PW O.M. dated 28.10.2025).

(5) Twin children. Where family pension is payable to twin children, it is paid to them in **equal shares**, irrespective of their sex; on one ceasing to be eligible, the whole is paid to the other.

(6) Both spouses Government servants. If both wife and husband are Government servants and one dies, family pension is payable to the surviving spouse; on the death of the surviving spouse, the child/children may be granted **two family pensions**, subject to an overall limit of **₹1,25,000/-** per month (enhanced rate) or **₹75,000/-** per month (normal rate).

Rule 51 — Entitlements of the Family of a Missing Government Servant or Pensioner

(1) In the case of a Government servant or pensioner who **goes missing**, family pension is payable to an eligible member of the family.

(2) It is payable from the day following the date up to which pay/pension was last paid, **or** from the date on which the report was lodged with the police (**FIR**), whichever is **later**.

(3) Payment of family pension and gratuity is **not** made before the expiry of **6 months** from the date of lodging the FIR.

(4) Where the payment is delayed due to administrative lapses, **interest** is payable for the period of delay beyond 6 months.

(5) Death gratuity. In the case of a missing Government servant, death gratuity becomes payable after the death is **conclusively established**, or on the expiry of **7 years** from the date of the FIR, **whichever is earlier**.

Chapter IX — Dearness Relief (Rule 52)

Rule 52 — Dearness Relief on Pension and Family Pension

Dearness Relief (DR) may be granted to pensioners — including persons drawing **compassionate allowance** — and to **family pensioners**, at such rates and subject to such conditions as the Central Government may specify from time to time. DR is intended to neutralise the rise in the cost of living and is **revised twice a year**, ordinarily with effect from **1 January** and **1 July**. DR is calculated on the **basic pension/family pension** (before commutation, where applicable) and is not part of "pension" for the purpose of the definition in Rule 3.

Chapter X — Determination and Authorization of Pension and Gratuity (Rules 53–70)

⚠ MAJOR AMENDMENT — CCS (Pension) Amendment Rules, 2024 [GSR 410(E) dated 16.07.2024]

A single, simplified **Form 6-A** was introduced and made **mandatory** for retiring Central Government civil employees, replacing the earlier multiple forms. Form 6-A consolidates **nine** forms/formats: **Form 6, Form 8, Form 4, Form 3, Form A, Format 1, Format 9, the FMA option form, and the Zero Option Form.**

Pension cases are now processed in **online mode**: officials on **e-HRMS** submit Form 6-A through **e-HRMS** (superannuation cases only); others, and all non-superannuation cases (voluntary/premature retirement, absorption in State/PSU/autonomous body, invalidation, compulsory retirement, and dismissal/removal), submit through **Bhavishya**.

Rules 53, 57, 58, 59 and 60 were amended accordingly. Form 6-A came into force after 120 days from notification, i.e. **w.e.f. 16.11.2024** (made available on Bhavishya / e-HRMS 2.0 from early November 2024). Existing pensioners/family pensioners continue to use **Form A** for separate or revised nominations made after retirement.

Rule 53 — Processing of Pension Cases in the Online Pension Sanctioning System

(1) Unless exempted by a general or special order, the pension case of a Government servant is **processed through online mode (Bhavishya / e-HRMS)**, and retiring officials who are on **e-HRMS** submit **Form 6-A** through e-HRMS (superannuation cases only).

(2) In the case of a department, office or person **exempted** from the purview of the online system, the details/documents are transmitted in **physical mode** and the pension case is processed manually.

(3) Where a particular action or activity **cannot be performed** through the online system, that action or activity is performed **manually**.

Rule 54 — Preparation of List of Government Servants Due for Retirement

(1) Every Head of Department prepares, by the **15th day of every month**, a list of all Government servants due to retire within the **next 15 months** of that date.

(2) A copy of every such list is supplied to the Accounts Officer concerned **before the last day** of every month.

(3) Where a Government servant is to retire for reasons **other than superannuation**, the Head of Office informs the Accounts Officer **not later than 10 days** from the date of issue of the order regarding the retirement.

Rule 55 — Intimation to the Directorate of Estates regarding the 'No Demand Certificate'

Immediately after preparing the list of Government servants due to retire within the next 15 months, the Head of Office obtains from each such servant (who is or was in occupation of Government accommodation) the relevant details, and sends them to the **Directorate of Estates at least one year** before retirement, for issue of a '**No Demand Certificate**' in respect of the period preceding **8 months** of the allottee's retirement.

Rule 56 — Preparation of Pension Papers

Every Head of Office undertakes the **preparatory work** for processing the pension case **one year** before the date of superannuation, or on the date on which the Government servant proceeds on leave preparatory to retirement, **whichever is earlier**.

Rule 57 — Stages for the Completion of Pension Papers on Superannuation

The Head of Office divides the one-year preparatory period into the following **three stages**:

(1) First Stage — Verification of Service. The Head of Office goes through the service book and satisfies himself that the certificates of verification for service subsequent to the verification under Rule 30 are recorded. For any **unverified portion(s)**, he verifies the service on the basis of pay bills, acquittance rolls, the last pay certificate, and the **pay slip for the month of April**, and records the necessary certificates.

(2) Second Stage — Making Good Omissions. While scrutinising the certificates, the Head of Office identifies any omissions, imperfections or deficiencies that have a direct bearing on emoluments and qualifying service, and verifies from the service book the correctness of the emoluments drawn (or to be drawn) during the **last 10 months** of service.

(3) Third Stage (not later than 8 months before retirement). The Head of Office:

- **(I)** furnishes the retiring servant a certificate of the qualifying service proposed to be admitted and the emoluments and average emoluments proposed to be reckoned;
- **(II)** directs the servant, if the certified service/emoluments are not acceptable, to furnish reasons supported by documents **within 2 months**; and
- **(III)** advises the servant to submit **Form 6-A** — which consolidates the family details, the undertaking to the Bank, the common nomination for arrears and commuted value, and the option for **Fixed Medical Allowance (FMA)** or OPD facility — **not later than 6 months** before retirement.

(4) Where the Head of Office is satisfied that the servant is unable to submit the forms due to bodily or mental infirmity, the **spouse** (or, in the spouse's absence, an eligible family member) may submit them.

(5) Where the forms are submitted by the spouse/family member, the Government servant is **not** entitled to the benefit of commutation until he himself subsequently applies under the **CCS (Commutation of Pension) Rules, 1981**.

Rule 58 — Submission of Forms (Retirement Other Than Superannuation)

(1) A Government servant retiring for reasons **other than superannuation** may submit **Form 6-A** (with the undertaking to the Bank, the common nomination, and the FMA/OPD option) **after** the competent authority has approved the retirement or the retirement has become effective.

(2) The provisions for submission by the **spouse or family member** in case of infirmity (as in Rule 57(4)) apply equally.

Rule 59 — Completion of Pension Case

(1) In cases of **superannuation**, the Head of Office completes **Part I of Form 7** along with the checklist and the pension-calculation sheet **not later than 4 months** before the date of retirement.

(2) In cases **other than superannuation**, the Head of Office completes Part I of Form 7 with the checklist and calculation sheet **within 2 months** after submission of Form 6-A.

Rule 60 — Forwarding of Pension Case to the Accounts Officer

(1) After completing the requirements, the Head of Office forwards to the Accounts Officer: **(a)** copies of **Form 6-A** and the undertaking to the Bank; **(b)** copies of **Form 7** (with the checklist and calculation sheet) and the covering letter; and **(c)** the duly completed, up-to-date **service book** with any other documents relied upon for verification.

(2) The Head of Office retains a copy of each form for his record.

(3) The pension case is forwarded **not later than 4 months** before the date of superannuation, and in other cases **not later than 2 months** after submission of Form 6-A.

(4) A **pension-calculation sheet** is given to the pensioner.

(5) The **scale of pay of the post last held** is indicated in all PPOs.

Rule 61 — Intimation to the Accounts Officer of Any Event Bearing on Pension or Government Dues

(1) If, after the pension papers are forwarded, any event occurs that has a bearing on the amount of pension admissible, the fact is **promptly reported** to the Accounts Officer by the Head of Office.

(2) If, after the particulars of Government dues are intimated, any **additional Government dues** come to notice, they too are promptly reported to the Accounts Officer.

Rule 62 — Provisional Pension (Reasons Other Than Departmental or Judicial Proceedings)

(1) This applies where, in a case of superannuation, after the servant (or his spouse/family) has submitted the forms, either it is **not possible** for the Head of Office to forward the pension papers in time, or the papers have been returned by the Accounts Officer for further information.

(2) Where the amount of pension and gratuity cannot be determined for reasons other than departmental/judicial proceedings, the Head of Office: **(a)** issues a letter of sanction to the servant (copy to the Accounts Officer); **(b)** authorises **100% of the pension** as **provisional pension** from the day following retirement; and **(c)** authorises **100% of the gratuity** as **provisional gratuity**, withholding **10%** of the gratuity.

(3) The sanction for provisional pension is issued **not later than 10 days** after retirement (where the case is not submitted by the Head of Office), and **within 1 month** of submission of forms by the servant.

(4) Provisional pension does **not** continue beyond **6 months** from the date of retirement.

(5) Where the provisional pension disbursed exceeds the final pension, the Accounts Officer adjusts the excess from the gratuity withheld, or recovers it in instalments from future pension.

(6) Where the provisional gratuity disbursed exceeds the amount finally assessed, the retired servant is **not** required to refund the excess.

Rule 63 — Authorization of Pension and Gratuity by the Accounts Officer

(1) On receipt of the pension case, the Accounts Officer applies the requisite checks, completes **Part II of Form 7**, assesses the pension/family pension/gratuity, and issues the **PPO not later than 2 months in advance** of the date of superannuation.

(2) In cases of retirement **other than superannuation**, the PPO is issued **within 45 days** of receipt of the pension papers.

(3) While applying checks, the Accounts Officer verifies the correctness of emoluments **only for the 24 months** preceding retirement.

(4) Where the family includes **more than one surviving wife**, the PPO indicates the names of all the wives with their respective shares in the family pension.

(5) The PPO also indicates the names of any **permanently disabled child/children, dependent parents and disabled siblings** as family pensioners.

(6) Where any departmental or judicial proceedings are pending, **provisional pension under Rule 8** is authorised and **no gratuity** is paid until final orders; the Head of Office forwards the final orders with **Form 7-A not later than 30 days** from the date of issue of those orders.

Rule 64 — Government Servants on Deputation

(1) Where the Government servant is on deputation to **another Central Government Department**, family pension and gratuity are authorised by the **borrowing Department**.

(2) Where the servant is on deputation to a **State Government**, or while on **foreign service**, family pension and gratuity are authorised by the **parent Department or the cadre authority**.

Rule 65 — Interest on Delayed Payment of Gratuity

(1) Where the payment of pension, family pension or gratuity is authorised **later than the date it became due**, and the delay is attributable to administrative reasons or lapses, **interest** is paid at the rate and in the manner applicable to **GPF** accumulations.

(2) The interest is paid **within 2 months** from the date on which its payment is sanctioned by the Secretary or the officer authorised by him.

(3) Interest is admissible for the period **beyond 3 months** from the date of retirement (or issue of the order) up to the date of payment of the arrears.

Rule 66 — Revision of Pension After Authorization

(1) A pension once authorised after final assessment is **not revised to the disadvantage** of the Government servant, **unless** the revision is necessitated by detection of a **clerical error**.

(2) No revision to the pensioner's disadvantage is ordered, where the clerical error is detected after **2 years** from authorization, without the concurrence of the Department of Personnel and Administrative Reforms.

(3) Where an **excess payment** is found, the department may waive it in consultation with the **Ministry of Finance**.

(4) If not waived, the pensioner is served notice to **refund the excess within 2 months**.

(5) On failure to comply, the excess is adjusted in instalments by short payments of future pension.

Rule 67 — Recovery and Adjustment of Government Dues

(1) It is the duty of the Head of Office to **ascertain and assess** the Government dues payable by a Government servant due for retirement.

(2) Where dues are outstanding till the date of retirement, they are **adjusted against the retirement gratuity**.

(3) "Government dues" include arrears of licence fee; electricity / water / PNG charges; the balance of house-building / conveyance advances; overpayment of pay and allowances; and income-tax arrears.

Rule 68 — Adjustment and Recovery of Dues Pertaining to Government Accommodation

(1) In the case of retirement on **superannuation**, the **Directorate of Estates** issues a 'No Demand Certificate' and informs the Head of Office **within 2 months** of any licence fee recoverable for the period prior to **8 months** of retirement.

(2) In cases **other than superannuation**, the Directorate of Estates informs the Head of Office **within 1 month**.

(3) Where the outstanding licence fee cannot be determined, the Directorate may advise that **10% of the gratuity** be withheld.

(4) The 'No Demand Certificate' is ensured **within 14 days** from the date of submission of the application after actual vacation of the accommodation.

Rule 69 — Adjustment and Recovery of Dues Other Than Accommodation Dues

(1) The Head of Office takes steps to assess such dues **one year** before the date of superannuation.

(2) The assessment is completed **8 months prior** to retirement (superannuation), or **within 30 days** after retirement (other cases).

(3) Outstanding dues are **adjusted against the retirement gratuity**.

Rule 70 — Date of Retirement to be Notified

When a Government servant retires, a notification in the **Official Gazette** (for Gazetted officers) or an **Office Order** (for Non-Gazetted) is issued specifying the date of retirement **within a week**, and a copy is forwarded immediately to the Accounts Officer.

Chapter XI — Family Pension and Gratuity: Death / Missing while in Service (Rules 71–78)

Rule 71 — Obtaining of Claims for Family Pension and Gratuity

(1) On receiving intimation of the death of a Government servant in service, the Head of Office ascertains whether **death gratuity or family pension** is payable.

(2) He addresses the eligible family member (in the prescribed format) to make a claim in **Form 10** and to submit an undertaking to the Bank.

(3) Licence-fee waiver. Where the deceased was an allottee of Government accommodation, the outstanding licence fee for the period before death **stands waived**.

(4) If the family retains the accommodation, the licence fee for the **month of death and the first 3 months thereafter** is **not recovered**.

(5) The Head of Office does **not** wait for a death certificate and initiates action on receipt of credible information.

(6) Missing employee. The claim is accompanied by an undertaking, an **Indemnity Bond**, a copy of the **FIR**, and a police report stating that the employee could not be traced.

Rule 72 — Verification of Service and Emoluments for Family Pension and Gratuity

(1) The Head of Office verifies the service book for the certificates of verification of service.

(2) Verification of the correctness of emoluments is confined to a maximum period of **one year** preceding the date of death or disappearance.

(3) Where the servant was on EXOL, the emoluments for the one year preceding the leave are verified.

(4) The process is completed **within one month** of the receipt of intimation.

Rule 73 — Action Where Service Records are Incomplete

(1) The Head of Office verifies any unverified portion(s) on the basis of pay bills or other records (e.g. the April pay slip).

(2) Where service was rendered in another office, verification is done **within one month**.

(3) The amount of family pension is determined **within one month** of receipt of intimation.

Rule 74 — Forwarding the Family Pension Case to the Accounts Officer

(1) On receipt of the claims, the Head of Office completes **Form 11** and sends it to the Accounts Officer with the covering letter, the undertaking, and the service book.

(2) This is done **not later than one month** of the receipt of the claim.

(3) Where any Government due exists, the gratuity withheld is limited to **10%**.

Rule 75 — Sanction, Drawal and Disbursement of Provisional Family Pension and Gratuity

(1) The Head of Office draws the **provisional family pension** (not exceeding the maximum family pension) **within 15 days** of the receipt of the claim.

(2) The provisional family pension continues for a period of **6 months**.

(3) The final amount of gratuity is determined **within 3 months**.

Rule 76 — Authorization of Final Family Pension and Balance of Gratuity

> **⚠ AMENDED — GSR 770(E) dated 07.10.2022**
> The clause beginning "(5) The fact of the issue …" was **re-numbered** as "(5A) The fact of the issue …" (a structural re-numbering of the sub-rule).

(1) The Accounts Officer applies the requisite checks and completes **Section I of Part II of Form 11 within one month**.

(2) Checks on emoluments are confined to the **one year** preceding death.

(3) The PPO is prepared **not later than one month** of receipt of the case.

(4) Missing employee. Payment of family pension is made only after the expiry of **6 months** from the date of lodging the FIR.

(5) Provisional adjustments. Excess provisional **family pension** is adjusted from the gratuity or future pension; excess provisional **gratuity** need **not** be refunded by the beneficiary.

Rule 77 — Adjustment of Government Dues

(1) The outstanding **licence fee before death is waived off** (and the fee for the month of death plus 3 months is not recovered, where accommodation is retained).

(2) Other outstanding dues are **adjusted against the gratuity withheld**.

Rule 78 — Payment of Family Pension / Death Gratuity on Deputation

(1) Where the deceased was on deputation to a **Central Government Department**, the family pension and death gratuity are authorised by the **borrowing Department**.

(2) Where on deputation to a **State Government** or on **foreign service**, they are authorised by the **parent Department**.

Chapter XII — Family Pension and Residuary Gratuity: Deceased / Missing Pensioners (Rules 79–80)

Rule 79 — Sanction of Family Pension and Residuary Gratuity

(1) On receipt of a claim in **Form 10**, the Head of Office sanctions the family pension in the prescribed format.

(2) Payment becomes effective from the day following the date up to which pension was paid, or from the date of the **FIR** (in missing cases).

(3) Residuary gratuity is payable where applicable under the rules.

Rule 80 — Authorization of Payment by the Accounts Officer

The Accounts Officer authorises the payment **within one month** from the date of receipt of the sanction.

Chapter XIII — Payment of Pensions (Rules 81–83)

Rule 81 — Date From Which Pension Becomes Payable

A Government servant becomes eligible for pension from the **day following** the date of his retirement.

Rule 82 — Currency in Which Pension Becomes Payable

All pensions, including gratuities admissible under these rules, are payable in **rupees in India only**.

Rule 83 — Manner of Payment of Gratuity and Pension

A pension fixed at monthly rates is payable monthly **on or after the last working day** of the month — **except** for the month of **March**, when it is payable **on or after the first working day of April**. Gratuity is paid as a lump sum after final assessment, subject to the withholding provisions of these rules.

Forms and Formats (post Form 6-A consolidation)

Key change

For retiring employees, **Form 6-A** is the single application form (it consolidates Forms 6, 8, 4, 3, A, Format 1, Format 9, the FMA option and the Zero Option Form). The forms below remain in use for death/missing cases, gratuity assessment, and post-retirement nominations by existing pensioners.

Form / Format	Purpose
Form 6-A	Single simplified pension application form for retiring employees (Bhavishya / e-HRMS) — w.e.f. 16.11.2024
Form 1	Permission to accept commercial employment within one year of retirement (Rule 9)
Form 3	Common nomination for Gratuity / GPF / CGEGIS (subsumed in Form 6-A for retiring employees)
Form 7	Assessment of pension / family pension and gratuity (Part I — Head of Office; Part II — Accounts Officer)
Form 7-A	Provisional pension where departmental / judicial proceedings are pending (Rule 8)
Form 10	Application to the Head of Office for family pension on death of a Government servant / pensioner
Form 11	Assessment and authorization of family pension and death gratuity (death / missing in service)
Form A	Common nomination for arrears of pension and commuted value — post-retirement nominations by existing pensioners (Payment of Arrears of Pension (Nomination) Rules, 1983)

Amendment Tracker — Quick Reference

The following table summarises the amendments and orders incorporated in this edition. Always confirm the current position against the official Gazette / DoP&PW before relying on any provision.

Source / Notification	Date	Effect
GSR 868(E) — Principal Rules	20.12.2021	CCS (Pension) Rules, 2021 brought into force; repealed the 1972 Rules
GSR 770(E) — CCS (Pension) Amdt. Rules, 2022	07.10.2022	Rule 8 substituted (3 competent authorities; new sub-rule 6A appeal); Rule 20 Explanation-1; Rule 46(5)(a); Rule 50(9)(h)(iii); Rule 76 (5)→(5A)
DoP&PW O.M. F. No. 57/05/2021-P&PW(B)	03.03.2023	One-time option for employees selected before 01.01.2004 but joined on/after 01.01.2004
DoP&PW O.M. No. 38/37/2016-P&PW(A)	May 2024	Gratuity ceiling enhanced ₹20 L → ₹25 L w.e.f. 01.01.2024 (DA reached 50%)
GSR 410(E) — CCS (Pension) Amdt. Rules, 2024	16.07.2024	Form 6-A introduced (consolidates 9 forms); Rules 53, 57, 58, 59, 60 amended; online mode (Bhavishya / e-HRMS); effective 16.11.2024
CCS (Pension) Amendment Rules, 2025	2025	Rule 37 — forfeiture of Government-service retirement benefits on post-absorption misconduct in the PSU (verify bare text)
DoP&PW O.M.	27.10.2025	Clarification — enhanced family pension '7 years / age 67' applies uniformly regardless of retirement age
DoP&PW O.M.	28.10.2025	Both dependent parents must submit individual annual life certificates for enhanced family pension